



4221 Bud Dr NE, Comstock Park, MI 49321

HIPAA BUSINESS ASSOCIATE ADDENDUM

Version 2026-08-11

[DATE]

This HIPAA Business Associate Addendum (this "Addendum") is made as of the date an authorized signer completes electronic signature through Refidly's in-product signing flow (the "Effective Date"), by and between [RECIPIENT NAME], a [] [corporation / limited liability company / other] [] ("Customer" or "Covered Entity"), and Refidly, a product of InnovareHP ("Refidly" or "Business Associate"). This Addendum is expressly made part of, and incorporated into, the Refidly Customer Agreement between the parties (the "Agreement"), and applies only if the Customer subscribes to a plan for which Refidly offers a BAA.

[CITY, STATE ZIP]

A. Customer is a Covered Entity, or is a Business Associate to a Covered Entity, and wishes to create, receive, or transmit Protected Health Information through the Service.

B. Refidly creates, receives, maintains, and transmits PHI on Customer's behalf in a manner that makes Refidly a Business Associate under HIPAA rather than a transmission-only conduit, and the parties agree Refidly will perform, and be bound by, the full obligations of a Business Associate set out in this Addendum.

C. Opening paragraph placeholder. Introduce the purpose of the letter and provide a brief overview of the Act, and the HIPAA Regulations with respect to the Service.

1. Definitions

Terms used throughout this Addendum have the meanings given in the HIPAA Privacy Rule, the Act, or the HIPAA Regulations, as applicable.

- "Breach" has the meaning given in 45 C.F.R. § 164.402, subject to the exclusions set out there.
 - "Breach Notification Rule" means Subpart D of 45 C.F.R. Part 164, together with the related provisions of Part 160 and Subpart A of Part 164.
- Closing paragraph placeholder. Include any next steps, call to action, or additional information. Thank the recipient for their time and consideration.

- "Business Associate" and "Covered Entity" have the meanings given in 45 C.F.R. § 160.103.
- "Data Aggregation" and "Designated Record Set" have the meanings given in 45 C.F.R. § 164.501.
- If you have any questions or would like additional information, please feel free to contact us at [PHONE NUMBER] or [EMAIL ADDRESS].
- "De-Identify" means to alter PHI so that the result meets the requirements of 45 C.F.R. § 164.514(a) and (b).

- "Disclosure" and "Disclose" have the meanings given in 45 C.F.R. § 160.103.

- "Electronic PHI" has the meaning given in 45 C.F.R. § 160.103.

Sincerely,
"HIPAA" means the Health Insurance Portability and Accountability Act of 1996, and "HITECH Act" means Subtitle D of the Health Information Technology for Economic and Clinical Health Act, 42 U.S.C. §§

[NAME]-17953; the Privacy Rule, Security Rule, and Breach Notification Rule issued thereunder are the "HIPAA Regulations."

- "Individual" has the meaning given in 45 C.F.R. § 160.103, including a personal representative under 45 C.F.R. § 164.502(g).

[PHONE NUMBER] means Subpart E of 45 C.F.R. Part 164; "Security Rule" means Subpart C of 45 C.F.R. Part

164.
[EMAIL ADDRESS]



hello@innovarehp.com



(269) 501 - 4496



www.innovarehp.com

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- "PHI" or "Protected Health Information" has the meaning given in 45 C.F.R. § 160.103.
- "Security Incident" has the meaning given in 45 C.F.R. § 164.304.

[DATE] Subcontractor" has the meaning given in 45 C.F.R. § 160.103, and "Unsecured PHI" the meaning given in 45 C.F.R. § 164.402.

[RECIPIENT NAME] Refidly platform made available to Customer under the Agreement, including its referral and facility records, custom fields, notes and attachments, field activity logs, calendar and booking tools, [RECIPIENT TITLE] outreach and fax delivery, analytics, exports, and AI-assisted features.

[ORGANIZATION NAME]

2. Obligations and Activities of Business Associate

[ADDRESS]

Refidly will:

[CITY, STATE, ZIP] not use or disclose PHI other than as permitted or required by this Addendum or as required by law;

- use appropriate administrative, physical, and technical safeguards, and comply with the Security Rule with RECIPIENT SUBJECT TO TITLE use or disclosure other than as provided for by this Addendum;

• maintain those safeguards as described in the Agreement, including encryption of PHI in transit and at rest, access controls, scoped to Customer's own organization, unique user identification, a second authentication factor for access to PHI, optional network allowlisting under Customer's control, and audit logging of record changes;

[Opening paragraph placeholder. Introduce the purpose of the letter and provide a brief overview of the report to Customer, without unreasonable delay and in no event later than 60 calendar days after discovery, message] or disclosure of PHI not permitted by this Addendum, any Security Incident of which it becomes aware, and any Breach of Unsecured PHI, in accordance with the Breach Notification Rule, including to the extent known, the individuals affected, the nature of the incident, the PHI involved, and the mitigation and corrective steps taken;

[Body paragraph placeholder. Include the main information, details, context, or key points that the recipient needs to know.]

- report unsuccessful attempts at unauthorized access that do not result in unauthorized access to PHI on an aggregate basis on request;

[Closing paragraph placeholder. Include any next steps, call to action, or additional information. Thank ensure that any Subcontractor that creates, receives, maintains, or transmits PHI on Refidly's behalf, including hosting, storage, fax delivery, and AI processing providers, agrees in writing to restrictions and the recipient for their time and consideration.]

conditions at least as protective as those in this Addendum, and remain responsible for their handling of PHI;

• make PHI in a Designated Record Set available to Customer within 10 business days of a request, so If you have any questions or would like additional information, please feel free to contact us at Customer can respond to an Individual's access request under 45 C.F.R. § 164.524;

[PHONE NUMBER] or [EMAIL ADDRESS]

- make PHI available for amendment, and incorporate any amendment Customer directs, in accordance with 45 C.F.R. § 164.526;

Sincerely,

maintain and make available the information required to provide an accounting of disclosures under 45 C.F.R. § 164.528, and forward to Customer any request an Individual makes directly to Refidly;

[NAME] its internal practices, books, and records relating to the use and disclosure of PHI available to the

Secretary of Health and Human Services for purposes of determining Customer's compliance with HIPAA; [JOB TITLE] and

[ORGANIZATION NAME]

mitigate, to the extent practicable, any harmful effect known to Refidly of a use or disclosure of PHI in violation of this Addendum.

[PHONE NUMBER]
[EMAIL ADDRESS]



3. Permitted Uses and Disclosures by Business Associate

Except as otherwise limited in this Addendum, Refidly may use and disclose PHI (a) to perform the Service under the Agreement; (b) for Refidly's proper management and administration, or to carry out its legal responsibilities, provided any disclosure to a third party is either required by law or subject to reasonable assurances of confidentiality and prompt notification of any known breach; (c) to provide Data Aggregation services relating to Customer's health care operations, if requested; and (d) to De-Identify PHI in accordance with 45 C.F.R. § 164.514, after which the resulting information is no longer PHI and is not subject to this Addendum.

• Refidly shall make reasonable efforts to use, disclose, and request only the minimum necessary PHI to accomplish the intended purpose.

• Refidly shall not sell PHI, and shall not use or disclose PHI for marketing purposes, except as permitted by HIPAA, State Law, and/or authorized in writing by Customer.

• AI-assisted features transmit workspace content to an AI subprocessor only when a user triggers them. That processing is transient, remains scoped to Customer's organization, and no workspace content is used to train any Refidly or third-party model. AI output is decision support and is not a clinical determination.

• Outreach email is transmitted through the mailbox Customer's user connects, under Customer's own sending identity. Refidly does not select the recipients of, or the content placed in, those messages.

4. Obligations of Covered Entity

[Opening paragraph placeholder. Introduce the purpose of the letter and provide a brief overview of the Customer will (a) provide Refidly only with PHI reasonably necessary for Refidly to perform the Service, consistent with the minimum-necessary standard; (b) notify Refidly of any limitation in its notice of privacy practices, or any restriction or revocation of an Individual's authorization, to the extent it affects Refidly's use or disclosure of PHI; and (c) notify Refidly in writing of any change in information that would not be permitted under the Privacy Rule if done by Customer directly, except as permitted under Section 3 for Data Aggregation or management functions.]

• Customer configures its own custom fields and is responsible for what those fields are used to hold.

[Closing paragraph placeholder. Include any next steps, call to action, or additional information. Thank Customer for its time and consideration.]

Customer shall not place PHI in the Service before this Addendum is in effect. The recipient is responsible for deprovisioning its own users, for the roles and permissions it assigns them, and for the lawfulness of the PHI it submits.

If Customer has any questions or would like additional information, please feel free to contact us at [PHONE NUMBER] or [EMAIL ADDRESS].

• Customer selects the retention period applied to its records and is responsible for choosing one consistent with its own legal and professional obligations.

5. Term and Termination

5.1 Conditions to validity. This Addendum is valid and binding only once (a) an authorized signer for Customer has completed electronic signature as described under Signatures, and (b) Customer maintains an active subscription to a plan for which Refidly offers a BAA. An Addendum signed in anticipation of an upgrade does not take effect until both conditions are satisfied.

[PHONE NUMBER]

5.2 Term coextensive with billing cycle. This Addendum's effectiveness runs coextensively with Customer's [EMAIL ADDRESS] then current billing cycle under the Agreement, and renews automatically, without a new signature, upon each



timely renewal payment for a BAA-eligible plan.

5.3 Automatic lapse. This Addendum automatically lapses, without further action by either party, if (a) Customer's plan is changed to one for which Refidly does not offer a BAA, (b) the Agreement is cancelled or terminated, or (c) payment for the then-current billing cycle is not made and the Service is suspended for non-payment after notice. A lapse does not itself terminate the Agreement, but Customer may not place or process PHI in the Service while this Addendum has lapsed.

[RECIPIENT TITLE]

5.4 Overall term and breach. Subject to Sections 5.1 through 5.3, this Addendum takes effect on the Effective Date and terminates automatically when the Agreement terminates, or when all PHI held by Refidly has been returned or destroyed under Section 6, whichever is later. If either party learns of a material breach of this

Addendum by the other, the non-breaching party will notify the breaching party in writing, and the breaching party will have 30 days to cure. If the breach is not cured within that period, the non-breaching party may terminate the Agreement and this Addendum for cause, in addition to any other remedies available at law.

RE: [LETTER SUBJECT / TITLE]

6. Effect of Termination

On termination of this Addendum, Refidly will, at Customer's election, return or destroy all PHI it maintains and retain no copies, except that (a) where return or destruction is not feasible, Refidly will extend the protections of this Addendum to the PHI retained and limit further uses and disclosures to those purposes that make return or destruction infeasible, for as long as Refidly maintains the PHI; and (b) Refidly may retain PHI within backups and audit records as described in the Agreement, which remain subject to this Addendum until they expire under the applicable retention schedule. Destruction is carried out in a manner that renders the PHI unreadable and unreconstructable.

[Body paragraph placeholder. Include the main information, details, context, or key points that the recipient needs to know.]

7. Indemnification and Liability

Refidly will defend and indemnify Customer against third-party claims, fines, or penalties arising from Refidly's failure to perform its obligations as Business Associate under this Addendum, including a Breach caused by Refidly's failure to implement the safeguards described in Section 2. This indemnification obligation is not subject to the general liability cap in the Agreement to the extent such a limitation would be unenforceable under applicable law. Customer will indemnify Refidly as provided in the Agreement for PHI placed in the Service outside the scope of this Addendum, including on a plan for which no BAA has been executed.

If you have any questions or would like additional information, please feel free to contact us at

8. Miscellaneous

The parties will amend this Addendum as necessary for Customer to comply with HIPAA, the HITECH Act, and the HIPAA Regulations.

Interpretation: any ambiguity in this Addendum will be resolved in favor of an interpretation that permits compliance with the HIPAA Regulations, and a reference to a section of HIPAA means that section as in effect or as amended.

[NAME]

- No third-party beneficiaries: nothing in this Addendum confers any rights on any person other than the parties.

[JOB TITLE]

[ORGANIZATION NAME]

Survival. Obligations relating to the return, destruction, or continued protection of PHI, and indemnification for acts occurring before termination, survive termination of this Addendum.

[PHONE NUMBER]

- Order of precedence: in the event of a conflict between this Addendum and the Agreement, this Addendum controls with respect to PHI.

[EMAIL ADDRESS]



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- Governing law: this Addendum is governed by the law of the jurisdiction of Customer's formation, without regard to its conflict of laws rules.

DATE

Signatures

The parties agree that electronic signatures, including a signature drawn or otherwise captured through Refidly's iSign, satisfy any requirement of a written or handwritten signature under the U.S. E-SIGN Act and applicable state equivalents (UETA). This Addendum is executed when an authorized signer for Customer completes that flow against the countersignature of Refidly recorded below. The signed PDF and associated [ORGANIZATION NAME] name, title, email, network address, and timestamp, retained by Refidly constitute the authoritative record of acceptance.

[ADDRESS]

[CITY, STATE ZIP]

RE: [LETTER SUBJECT / TITLE]

Dear [Recipient Name],

[Opening paragraph placeholder. Introduce the purpose of the letter and provide a brief overview of the message.]

[Body paragraph placeholder. Include the main information, details, context, or key points that the recipient needs to know.]

[Closing paragraph placeholder. Include any next steps, call to action, or additional information. Thank the recipient for their time and consideration.]

If you have any questions or would like additional information, please feel free to contact us at [PHONE NUMBER] or [EMAIL ADDRESS].

Sincerely,

[NAME]

[JOB TITLE]

[ORGANIZATION NAME]

[PHONE NUMBER]

[EMAIL ADDRESS]

